

66%
of all email traffic
in 2014 was spam



NEED TO KNOW

- › **CAN-SPAM Act** International legal ruling that sets out commercial email requirements and penalties for violation
- › **Phishing** Fraudulent sending of emails while pretending to be a genuine entity, to gain the recipient's bank details, for example

Typical regulations to protect consumer

- ☒ A marketer making a claim that its product is superior to a rival's must be able to substantiate it with proof.
- ☒ A marketer must be able to prove that a person they have used to endorse a product has used the goods or service they are promoting.
- ☒ A marketer promoting a product with a special offer must set out the terms and conditions in writing. In the UK, use of the word "free" is subject to regulation.
- ☒ All competitions and prize draws must adhere to government guidelines to ensure that they are fair and impartial.
- ☒ Telemarketers must promptly disclose key facts of the proposed sale, including cost and quantity, restrictions and conditions, and refund policy.
- ☒ Marketers must stick to specific guidelines governing how they advertise and promote products to children.
- ☒ Customer information must be stored, managed, and used in accordance with privacy laws.
- ☒ It is illegal to use contact lists from external sources. Emails must disclose their commercial nature to the recipient.
- ☒ Marketers must refrain from sending bulk unsolicited emails, the most common form of spam, or other types of unrequested messages.
- ☒ Any item offered alongside the main product purchased must be presented as an option to buy, not an item the consumer must take action to refuse.